

#	Case Name	Tentative
3	25-01464728 <i>Dang vs. Jaguar Land Rover North America, LLC</i>	Motion to Compel Deposition (Oral or Written) Plaintiff Evelyn Ngoc Dang's Motion to Compel Compliance with Code of Civil Procedure, section 871.26 is CONTINUED to _____. The parties may each file a supplemental briefing not to exceed five (5) pages no later than nine (9) court days before the hearing to address any remaining issues. The Court reminds Defendant that repeated noncompliance with Code of Civil Procedure, section 871.26(b)-(d) will result in evidentiary sanctions. (Code Civ. Proc., § 871.26(j)(4).)
4	23-01368146 <i>Garcia vs. General Motors LLC</i>	Motion to Strike or Tax Costs Defendant General Motors, LLC's Motion to Tax Costs is GRANTED in part and DENIED in part. The Court ORDERS \$615.09 taxed from Plaintiff's Memorandum of Costs. The Court exercises its discretion to consider the opposition and reply. Jury Fees Jury fees are recoverable. (Code Civ. Proc., § 1033.5(a)(1).) Plaintiff is not seeking jury fees for trial but rather the \$150 jury deposit required by California courts. (Code Civ. Proc., § 631.) Defendant provides no authority which precludes the recovery of the jury fee deposit. Thus, the jury fees are not taxed. Motions to Compel Motion fees are recoverable. (Code Civ. Proc., § 1033.5(a)(1).) Defendant provides no authority which supports this claim and argues the motions were one-sided and unnecessary. However, each motion was granted at least in part. Thus, the fees to file the motions to compel are not taxed. Service of Process Service of process of the summons and complaint is recoverable. (Code Civ. Proc., § 1033.5(a)(4).) However, service of other papers such as depositions or motions are not expressly allowed. Thus, \$415.09 is taxed. Mediator Fees Plaintiff concedes the \$100 fee on 9/15/25 was included in error and requests the Court strike that fee. Defendant seeks to strike the other \$100 fee for mediation through Smart ADR on 6/12/25. Mediation fees may be awardable at the court's discretion under Code of Civil Procedure, section 1033.5(c)(4). (Gibson v. Bobroff (1996) 49

		Cal.App.4th 1202, 1209.) Plaintiff has failed to demonstrate the \$100 mediation fee on 6/12/25 was reasonably necessary to the conduct of litigation. Thus, the \$200 for mediation fees are taxed. Deposition Fees Defendant seeks to strike the deposition costs on the grounds it informed Plaintiff it would not be attending the deposition and thus, the taking of a certificate of nonappearance was not necessary. However, the CNA is useful in seeking to compel the deposition which Plaintiff did. Thus, the deposition fees are not taxed.
7	25-01477832 Gutierrez vs. Spieckerman	Motion for Protective Order Defendants Paul Spieckerman and Jessy Trostle’s motion for a protective order that plaintiff’s Special Interrogatories, Set Two, consisting of 140 interrogatories per defendant need not be answered in their entirety is CONTINUED to _____. Code of Civil Procedure Section 2017.020, subdivision (a) states: “The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.” Plaintiff opposes the Motion on the grounds that Defendants failed to meet and confer with Plaintiff in good faith prior to filing the Motion. The meet and confer requirement “is designed ‘to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order’ This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes.” (<i>Townsend v. Superior Court</i> (1998) 61 Cal.App.4th 1431, 1435.) This “requires that there be a serious effort at negotiation and informal resolution” and “that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (<i>Id.</i> at pp. 1438-1439.) Defendants have failed to establish that they engaged in “a serious effort at negotiation and informal resolution,” or an “attempt to talk the matter over, compare [counsel’s] views, consult, and deliberate.” (<i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1294.) Defendants sent a single meet and confer letter to Plaintiff on December 5, 2025, to which Plaintiff responded on December 9, 2025, offering solutions to potentially resolve the issue. Instead of continuing to meet and confer, Defendants filed their Motion. The parties are ORDERED to meet and confer in person or telephonically regarding the issues raised in the Motion within 15 days of the hearing. The parties are to file a joint statement of items still in dispute and their